Welcome to the LVNA

Villager

The Newsletter of the Lakewood Village Neighborhood Association

September 2010 Volume 54, Sunnyvale, California Editor Phyllis Fowler

Monthly Meeting September 8th

at 7:00 pm in the Lakewood Park Building

Remember: LVNA Picnic September 25th at Lakewood Park!

President's Column

-Fred Fowler



It's Picnic time!

Greetings neighbors! It's September again, Labor Day has come and gone, and kids are back in school. The Summer of 2010 is just about over, but it isn't quite over yet! There is still one more important fair weather event that has yet to take place. I'm talking of course about the yearly **LVNA Picnic**!

If you haven't done so already, please mark your calendars with two important dates. One date is Saturday, September 25th and the other is Wednesday, September 8th.

September 25th is "LVNA Picnic Day", the day we should all head to the Lakewood Park picnic area to enjoy outdoor food and neighborly companionship. **September 8th is our "Meeting Night",** the night we should all head to the **Lakewood Park building** to get the picnic organized and figure out how to set things up, cook the food, and clean things up afterward.

We're all very fortunate because a volunteer has stepped forward to coordinate the event! Our neighbor **Wendy Stanley** has offered to put the picnic together and will be responsible for all logistical issues. In addition, I'll be in charge of soliciting donations of food, raffle prizes and other things from local businesses. Together we should be able to cover all of the bases quite well (although more help is always welcome!) Let's give **Wendy** a hearty round of

(continued next column)

By the way, the picnic is not

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Walkers Needed for LVNA Newsletter!

Do you need a little exercise?

Do you have an hour to spare each month?

We need walkers to deliver the newsletter to Greenlake, Hiddenlake and Lakefair.

(The route can be split!)

If you are interested,

please contact Wendy at 745-1331



*(**Cont.**)* applause for stepping up to challenge.

By the way, the picnic is not the only thing Wendy has volunteered to do for us. Wendy has offered to help with the picnic, but she has also volunteered to take *full charge* of preparations for the **2010 Lakewood Village Holiday Parade!** She is already working on coordinating dates with the ***Fremont Band*** and is starting to map out the overall plan. More volunteers are welcome! If you are interested in helping get the parade organized, please **call Wendy at (408) 745-1331.**



The picnic is the third of our four annual events and certainly one of our most complicated ones. It sets us apart from other parts of Sunnyvale. Other neighborhoods have their own "block parties", but how many others "have it together" enough to feed 300+ people with donated food? We've fed that many and more in years past. I'm sure we'll do it again.

Please come to the **Lakewood Park building on Wednesday, September 8th, at 7:00pm,** so we can get your help to coordinate the picnic properly. Part of the charm of the event is that it is a big neighborhood

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We've fed that many and more in years past. I'm sure

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What's Going On With Downtown Sunnyvale?



By Fred Fowler

Sunnyvale enjoys a well earned reputation for being a center of excellence in city government. It has also been recognized often for being a safe, comfortable and livable community. It wasn't too very long ago that the *President and Vice President of the United States* came to visit us in order to learn from Sunnyvale how to improve the workings of Federal agencies. *Vice President Al Gore* even visited Lakewood Village once, in part because of our diversity and our strong sense of community. There are many reasons for all of us to take a great deal of pride in this city that is our home.

Having said that, Sunnyvale also has its own set of embarrassing problems. The most visible of them is the shambles that is our downtown. For almost two decades now the heart of our city has been a dilapidated ruin that, like the proverbial *"crazy aunt in the basement",* everyone knows is there but no one knows what to do with. There have been many different plans for renovating the area, but despite good intentions and hard work the fact remains that the area is a half-finished construction site representing the failed dreams of the latest developer who tried to tame that beast of a project.

I was personally involved with the downtown for the eight years I served on the Sunnyvale City Council (1997-2005), and in those eight years the mall area went through three changes of ownership and several changes in "concept". Each owner had his own idea for making "the project" go forward, and each one ended up shipwrecked on the various financial rocks they discovered along the way. I was not involved in selecting the current developer or approving the current project, but I decided to find out what I could about the developer's plans, his troubles, and where we can go from here. Here is what I discovered.

SAND HILL PROPERTIES

Shortly after I left the City Council, the city was approached by a local developer who wished to acquire the old Town and County center in the downtown just north of Washington Avenue. At that time, the buildings were owned by a private landowner but the streets were owned by the City of Sunnyvale. The developer that was interested in the **Town and Country Center** was "Sand Hill Properties", and it entered into negotiations with the City in order to buy the streets and assemble a "super block" for development. The sale of the streets eventually went through, and Sand Hill Properties now owns the entire area that used to be the old Town and County Center.

During those negotiations, Sand Hill Properties became aware of the problems the current owner was having with the mall project "next door" across Washington Avenue. To make a long story short, Sand Hill Properties made a deal with some "money men" to finance a takeover of the mall project. They teamed up with a financial company called "RREEF" and bought out the previous developer's interest in the downtown. RREEF would supply the financing and retain a 95% ownership stake in the final developed property. Sand Hill Properties would provide the development expertise and retain a 5% share in the completed project. RREEF borrowed more than $400 million from a set of banks led by ***(Continued Page 3)***

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(*Picnic Time! Cont. from page 1)*

"pot luck" meal with lots of small contributions from everyone. I've written in the past about some of the special dishes we've had *(such as the "killer" marinated chicken donated by Lakewood Dental).* Come and share your ideas about what to bring, how to store things, etc.

And don't forget to come to the **Lakewood Park picnic area on Saturday, September 25th!** The "official" hours for the picnic are **11:00am – 2:00pm**, but volunteers generally start setting things up at around 10:00am and don't finish cleanup until about 3:30pm. It will be an exhilarating and exhausting day! There will be food, games for the kids, face painting, a raffle, and plenty of neighbors to say hello to and talk with. The City of Sunnyvale will probably send one of its fire engines, and we'll see if we can get one of the police K9 units to give a demonstration. It should be a day to remember.

I'll see you there! ◆

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Downtown Update

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Wachovia, gave it to Sand Hill, and construction got underway.

RREEF

RREEF is a specialized finance company whose strategy is to acquire and hold "big ticket" commercial properties around the country (and perhaps even around the world). Most of their money is tied up in malls and commercial centers. In order to provide financing for projects such as the Sunnyvale Downtown, RREEF "mortgages" some of their property by borrowing against it and using it as collateral. The City of Sunnyvale knew this and checked RREEF out carefully before going ahead and allowing the project take-over. They made sure that the equity that RREEF held in its other properties was at least double that needed to support the lending required for the Town Center project plan. Everything checked out and ground was broken shortly thereafter.

Things proceeded well during the first year of construction (*2007*), and about $200 million worth of work was done. We can see the results of that work now. The first parts of the project that were "finished" were two parking garages on the east side of the west face of the old mall. One is across Town Center Lane from Macy's, and the other is across the street from the new Target store. *(The renovation of the Target store was carried out by Target itself and is not part of the Sand Hill Properties project)*

THE FINANCIAL CRISIS OF 2008

The mall project was going along smoothly until the "roof caved in" on the financial world at the end of 2008. If you recall, it was a time when many large and proud financial companies teetered on the brink of collapse. One of the previous financiers of the mall, Lehman Brothers, actually went bankrupt and ceased operations. There was a real

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9:30 a.m. Sunday School for all ages
11:00 a.m. Worship Service

Wednesday
7:00 p.m. Corporate Prayer Meeting

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Downtown Update

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sense of panic as lenders of all types called in their loans in an attempt to save and protect themselves.

One of the early casualties of this panic was RREEF. Remember, their strategy was to develop projects using borrowed money, with their other properties as collateral. They got hit by a "double-whammy". Borrowing became nearly impossible almost overnight. Also, the resulting crash in the commercial real-estate market made their collateral lose more than half its value. Suddenly, the "money men" in the Sand Hill Properties project could no longer supply any money. When that happened, construction on the downtown ground to a halt.

Needless to say, when the money ran out and the work stopped, everyone involved immediately "Lawyered up" and the entire matter ended up in the courts. As things stand now, the project is being administered by a court appointed "Receiver" whose job is to protect the property while the various suits are litigated. Wachovia's plan is to foreclose on its "mortgage" for the property and push RREEF and Sand Hill Properties out of the picture. (I'm not sure if this has happened yet or not, but if it does happen it will simplify the situation). The City of Sunnyvale is working to protect its interests in the downtown, both through the agreements it had signed with Sand Hill Properties and its ability to regulate the type of development that is allowed.

WHERE DO WE GO NOW?

Right now the ball is in the court of the Wachovia Bank and the court appointed Receiver. There is no "entrepreneur" with a "grand vision" involved anymore, and it will probably be a long time before any "new" developer steps forward. I have heard rumors that Sand Hill Properties is looking for a new "money man" to partner with in order to buy the property out of foreclosure and resume the project, but so far those are just rumors with no visible substance to them. We'll see if they prove to be true or not.

There is some progress though (at last!) About three months ago the Receiver came to the City and let them know that a major tenant was interested in leasing one of the office buildings. City agreements would have to be modified in order to sign a lease with the tenant, but if the City agreed then one of the most visible unfinished buildings could be completed and several hundred engineers could start working in the downtown thereafter. Sometime later the City announced that the Receiver had signed a lease with the Nokia Corporation and that Nokia would consolidate all of its Northern California operations in the Sunnyvale downtown.

There is another potential bright spot on the horizon. The original project plan included a multi-screen movie theater on the east side, facing Sunnyvale Avenue. There is now some talk that the Receiver is in negotiations with a theater chain that may sign a lease and allow the cinema complex to be completed. If that happens it may cause a "cascade" of leases for other businesses, such as restaurants, that may wish to be located near a working theater. The retail portions of the project may get back on track in this "piece-meal" fashion. That would just leave the "office" and "residential" portions of the project in limbo.

The City of Sunnyvale (especially the City Manager and City Attorney) have been working closely with the Receiver to make sure that as much justifiable work as possible can be done to "protect the project". At one point last winter there was a good chance that Target would "mothball" their store until the doubts about the rest of the downtown were resolved. The City Manager and the City Attorney persuaded the Receiver to release several tens of millions of

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Downtown Update

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dollars in order to complete work on the streetscape around the Target property. As a result, Target had its grand opening and started providing its goods to the people of Sunnyvale. Without the hard work of the City Manager and the City Attorney, it could have been a different story.

At this point the downtown is only partly completed, and it is likely to stay that way until the economy turns around. No one will pay for completing the unfinished office, retail and residential units until they can be leased for a profit. The real estate market for all three types of property is at an historic low. It will be a while before that reality changes. The best we can hope for is success for the "piece-meal" approach being taken by the Receiver. It may not be possible to complete the downtown in one grand sweeping project. It may be possible to complete it little by little, as individual tenants express interest in pieces of the property. A piece-meal approach may not be a bad thing. After all, that is how most downtowns grew in the first place. City centers were not historically constructed all at once. They were build piece by piece, and by different "entrepreneurs" with different "visions".

The City has been trying to fix the downtown areas since the original Town Center Mall was opened in1978. After 32 years the job is still not finished. There is reason for optimism, but at this point it looks like we'll have to wait a few years more before we have the kind of "heart" for our city that we want.

Our "crazy aunt" is still there. She is better than she was, but she is still a burden and an embarrassment to the community. Let's hope that she recovers soon, so she can come out of the basement and help us entertain the guests that come to the heart of our city. ◆

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LVNA Contacts:

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Advertising **- Terry Lin** **(408) 747-1638**
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Editorial Deadline for next month's Newsletter: by September 24th

To contact the editor, Please call Phyllis Fowler at (408)747-1454 or email: phyllis@fmfa.com